



**U.S. Citizenship  
and Immigration  
Services**

**Non-Precedent Decision of the  
Administrative Appeals Office**

In Re: 35931177

Date: JAN. 15, 2025

Appeal of Vermont Service Center Decision

Form I-918, Petition for U Nonimmigrant Status

The Petitioner seeks “U-1” nonimmigrant classification as a victim of qualifying criminal activity at sections 101(a)(15)(U) and 214(p) of the Immigration and Nationality Act (the Act), 8 U.S.C. §§ 1101(a)(15)(U) and 1184(p). The Director of the Vermont Service Center (Director) denied the Form I-918, Petition for U Nonimmigrant Status (U petition). The matter is now before us on appeal. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo’s Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

**I. LAW**

The U-1 classification affords nonimmigrant status to victims of qualifying criminal activity who suffer substantial physical or mental abuse as a result of the crime. Section 101(a)(15)(U)(i) of the Act. To be eligible for U-1 nonimmigrant status, the petitioner must also possess information about the qualifying crime and be helpful to law enforcement officials in their investigation or prosecution of the crime. *Id.*

As required initial evidence, petitioners must submit a Form I-918 Supplement B, U Nonimmigrant Status Certification (Supplement B), from a law enforcement official certifying the petitioners’ helpfulness in the investigation or prosecution of the qualifying criminal activity perpetrated against them. Section 214(p)(1) of the Act; 8 C.F.R. § 214.14(c)(2)(i). U.S. Citizenship and Immigration Services (USCIS) has sole jurisdiction over U petitions. 8 C.F.R. § 214.14(c)(1). Although petitioners may submit any relevant, credible evidence for the agency to consider, USCIS determines, in its sole discretion, the credibility of and weight given to all the evidence, including the Supplement B. Section 214(p)(4) of the Act; 8 C.F.R. § 214.14(c)(4).

**II. ANALYSIS**

The Petitioner filed her U petition in January 2024. In June 2024, the Director denied the U petition for lack of initial required evidence, as the petition was not accompanied by, among other things, a properly executed Supplement B. On appeal, the Petitioner submits a Supplement B executed in July

2024 by J-M-,<sup>1</sup> the founder and CEO of [REDACTED] a not-for-profit organization located in [REDACTED] Florida.

As stated above, the submission of a Supplement B is required by statute at section 214(p)(1) of the Act (“The petition filed . . . under section 101(a)(15)(U)(i) [of the Act] shall contain a certification . . .”). Moreover, as provided by the regulation at 8 C.F.R. § 214.14(c)(2)(i), a U petition “must include” as initial evidence, a Supplement B “signed by a certifying official within the six months immediately preceding the filing of” the U petition. Our review of the record does not demonstrate that a Supplement B was filed with the Petitioner’s original submission. Because the Petitioner did not file her U petition with the required initial evidence, she is ineligible for U nonimmigrant status under section 101(a)(15)(U) of the Act.

Although the Petitioner submits a Supplement B on appeal, this submission does not cure the deficiency in the record, as the Supplement B must be submitted with the initial filing. Moreover, because regulations require the Supplement B to be certified by a federal, state or local law enforcement agency, it cannot be certified by a not-for-profit organization.<sup>2</sup> We recognize the harsh outcome in this case, but we lack authority to waive the requirements of the statute, as implemented by the regulations. *See United States v. Nixon*, 418 U.S. 683, 695-96 (1974) (holding that both governing statutes and their implementing regulations hold “the force of law” and must be adhered to by government officials). Accordingly, the Petitioner has not established her eligibility for U nonimmigrant status under section 101(a)(15)(U) of the Act.

**ORDER:** The appeal is dismissed.

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<sup>1</sup> We use initials to protect the privacy of individuals.

<sup>2</sup> Additionally, a review of the Petitioner’s Supplement B indicates that she was victimized in Mexico. However, to qualify for U nonimmigrant status, the criminal activity that resulted in the victimization of a petitioner must either violate the laws of the United States or occur in the United States.